

Amendment No. 1 to SB1976

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1976*

House Bill No. 2436

by deleting § 38-1-1002(d) in SECTION 1 and substituting:

(d) Notwithstanding subsection (b), the written policy must make exceptions to the use of body cameras when interacting with a person seeking to anonymously report a crime or assist in an ongoing law enforcement investigation. In such a situation, a law enforcement officer shall, as soon as practicable, ask the person if the person wants the officer to discontinue use of the officer's body camera. If the person responds affirmatively, then the law enforcement officer must immediately discontinue use of the body camera.

AND FURTHER AMEND by deleting the language "subsection (d)" in § 38-1-1002(e) and substituting "subsection (c)" and deleting the language "subdivision (c)(2)(B)" in § 38-1-1002(c)(2)(C) and substituting "subdivision (b)(2)(B)".

AND FURTHER AMEND by deleting § 38-1-1002(b) in SECTION 1 and redesignating § 38-1-1002(c)-(e) appropriately.

AND FURTHER AMEND by deleting § 38-1-1003(b) and (c) in SECTION 1 and substituting:

(b) Body cameras must not be used to gather intelligence information based solely on First Amendment protected speech, association, or religion, or to record activity that is unrelated to a response to a call for service or a law enforcement or investigative encounter between a law enforcement officer and a member of the public.